12th March 2006

1. DESCRIPTION OF INCIDENT/SUSPECTED VIOLATION (WHO REPORTED THE INCIDENT, AND TYPE OF ABUSE): AT APPROXIMATELY 1200 ON 12 MARCH 2006, SERGEANT (NAME WITHHELD) OBSERVED [xxxxx], 2-1-2 PUBLIC ORDER BATTALION, KICK DETAINEE HP031130 ON THE BACK OF THE NECK WITH THE BOTTOM OF HIS FOOT. HP031130 WAS FLEXICUFFED WITH HIS HANDS BEHIND HIS BACK, BLINDFOLDED AND ON HIS KNEES WITH HIS JACKET COVERING HIS HEAD WHEN THIS HAPPENED.

2. DATE/TIME AND LOCATION WHERE ALLEGED ABUSE TOOK PLACE: APPROXIMATELY 1200 ON 1 2 MARCH 2006 AT THE HURRICANE POINT THA IN AR RAMADI.

3. UNIT AND PERSONNEL ACCUSED OF COMMITING THE ABUSE: [xxxxx] OF THE 2-1-2 PUBLIC ORDER BATTALION

4. EVIDENCE GATHERED, AND CONSIDERED IN MAKING AN OPINION ON THE VALIDITY OF THE ALLEGATION: STATEMENT OF SGT (NAME WITHHELD)

5. OPINION ON VALIDITY OF ALLEGATION OF ABUSE: VALID.

6. BASIS FOR OPINION: (NAME WITHHELD) IS AN HONEST MARINE WITH WHOM I HAVE WORKED FOR 7 MONTHS. HE HAS NO MOTIVE TO FABRICATE. IN ADDITION, THERE WERE 2 OTHER MARINES WHO WITNESSED THE ASSAULT.

7. RECOMMENDATION: NO INVESTIGATION REQUIRED. THE CORPSMAN NOTED A MINOR RED MARK ON THE DETAINEES NECK PRESUMABLY FROM WHERE HE WAS KICKED. I INFORMED THE COALITION REPRESENTATIVES AT 2-1-2 POB (MAJ (NAME WITHHELD) DSN 302-5212-228 AND MAJ (NAME WITHHELD) DSN 302-3609-131) WHO HAVE TURNED THE MATTER OVER TO THE IZ BATTALION COMMANDER. RECOMMEND THE POB ADDRESS THIS INCIDENT INTERNALLY.

8. POINT OF CONTACT: (NAME WITHHELD), DSN 302-3609-369